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TAB 17



Los Angeles Unified School District

129

333 South Beaudry Ave,
Los Angeles, CA 90017

Board of Education Report

File #: ROC-007-23/24, **Version:** 1

Report of Correspondence including Williams Settlement Uniform Complaint Quarterly Report Summary (ROC-007-23/24)

INTER-OFFICE CORRESPONDENCE
Los Angeles Unified School District
Office of the General Counsel
OFFICE OF STUDENT CIVIL RIGHTS

TO: Michael McLean
Executive Officer of the Board

DATE: January 12, 2024

FROM: Binh Nguyen, Director 
Office of Student Civil Rights

**SUBJECT: WILLIAMS AND STATE PRESCHOOL HEALTH/SAFETY UNIFORM
COMPLAINT 2023/2024, 2nd QUARTERLY SUMMARY REPORT**

Please include the attached 2023/2024 Williams and State Preschool Health/Safety Uniform Complaint Quarterly Report Summary to the Report of Correspondence that will be presented to the Board at the February 13, 2024, Board Meeting.

If you have questions or need additional information regarding this correspondence, please contact me at txa7416@lausd.net. Thank you.

c: Alberto M. Carvalho
Pedro Salcido
Frances Baez
Devora Navera Reed
Deneen Evans Cox
Francisco J. Serrato
Leanne Hannah
Miguel Garza
Krisztina Tokes
Mark Cho
Kimberly Balal

**WILLIAMS AND STATE PRESCHOOL HEALTH AND SAFETY
UNIFORM COMPLAINT
QUARTERLY REPORT SUMMARY
2nd Quarter 2023/2024**

DISTRICT NAME: Los Angeles Unified School District

DATE: January 12, 2024

QUARTER COVERED BY THIS REPORT:

October, November, December 2023

Williams Uniform Complaints:

	Number of Complaints Received in Quarter	Number of Complaints Resolved	Number of Complaints Unresolved
Textbooks and Instructional Materials	0	0	0
Facility Conditions	85	84	1
Teacher Vacancy or Misassignment	5	5	0
Totals	90	89	1

State Preschool Health and Safety:

	Number of Complaints Received in Quarter	Number of Complaints Resolved	Number of Complaints Unresolved
Facility Conditions	0	0	0
Visual Supervision	0	0	0
Totals	0	0	0

SUBMITTED BY: Binh Nguyen 

TITLE: Director, Office of Student Civil Rights, Office of the General Counsel

Please note: The unresolved complaint is within the 30-day deadline. This is a pending investigation and will be closed within the 30-day grace period.

Williams Project
Record Distribution Report
2023-2024 – 2nd Quarterly Report
January 12, 2024

Board Member							
Board Member	Gross UCPs	Non-Wms UCPs	Net Wms UCPs	IM	MO	HR	Total
1	2	0	2	0	1	1	2
2	4	0	4	0	3	1	4
3	74	0	74	0	74	0	74
4	2	0	2	0	2	0	2
5	2	0	2	0	1	1	2
6	3	0	3	0	1	2	3
7	3	0	3	0	3	0	3
Other/Districtwide	0	0	0	0	0	0	0
Not Applicable	0	0	0	0	0	0	0
TOTAL	90	0	90	0	85	5	90
Local District							
Local District	Gross UCPs	Non-Wms UCPs	Net Wms UCPs	IM	MO	HR	Total
North	78	0	78	0	76	2	78
South	4	0	4	0	3	1	4
East	5	0	5	0	3	2	5
West	3	0	3	0	3	0	3
Non-Public	0	0	0	0	0	0	0
Not Applicable	0	0	0	0	0	0	0
DACE	0	0	0	0	0	0	0
TOTAL	90	0	90	0	85	5	90
Subject Area							
Subject Area	Gross UCPs	Non-Wms UCPs	Net Wms UCPs				
IM	0	0	0				
MO	85	0	85				
HR	5	0	5				
Non-Williams	0	0	0				
TOTAL	90	0	90				
2023-2024 UCPs							
Quarter	Net UCPs	IM	MO	HR			
Q1	130	1	125	4			
Q2	90	0	85	5			
Q3	0	0	0	0			
Q4	0	0	0	0			
TOTAL	220	1	210	9			

Legend: UCPs=Uniform Complaint Procedures: Wms=Williams: IM=Instructional Materials/Textbooks: MO=Facilities:
HR=Human Resources (Teacher Assignments)

BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
Governing Board of the Los Angeles Unified School District

February 13, 2024

REPORT OF CORRESPONDENCE

The following correspondence addressed to the Board of Education is submitted with the recommended Disposition, “Refer to Superintendent for referral to Office of the General Counsel to take all steps necessary to protect the interests of the Board of Education, including assignment to outside counsel; Controller to draw warrants in such amounts as may be necessary for the payment of costs and fees upon invoices as approved by the Office of the General Counsel”:

FROM

LEGAL ACTION

1. Adam Loew
 Notice and Acknowledgement of Receipt of Summons and Complaint; Summons & First Amended Complaint for Damages: Violations of the IDEA, 20 U.S.C. §§ 1400 et seq., 34 C.F.R. PT. 300, Violations of Section 504, 29 U.S.C. § 794, 34 C.F.R. PT. 104, Disability Discrimination – Failure to Accommodate in Violation of Title II of the ADA 42 U.S.C. §§ 12131 et seq., 28 C.F.R § 35.130, Violations of Cal. Educ. Code §§ 56000 et seq., Cal Code Regs. TIT. 5 §§ 3030 et seq., Violations of American with Disabilities Act, California Civil Code, Sections 54.1, 52, et seq., Negligence, Negligence Supervision of Students, such as Student A and all others in Similar Situations; Case No. 2:23-cv-10733-SPG-Ex; United States District Court, Central District of California; Adam Loew, Student A through her guardian Adam Loew and All Others in Similar Situations, Plaintiff(s) v. Janice Greenburg, as a LAUSD Employee, Los Angeles Unified School District et al. (LAUSD) et al., Pomelo Community Charter School et al., California State PTA, dba Team Pomelo et al., Los Angeles Unified School District Board of Education et al., Miami Dade County Public Schools, Miami Dade County Public School Board of Education, Alberto Carvalho, as an employee of LAUSD, Scott Schmerelson, as a member of the LAUSD BOE, Allysa Gallette, as an employee of LAUSD, Does 1-10, inclusive, Defendant(s).
2. Arias Sanguinetti Wang & Torrijos LLP
 Summons & Second Amended Complaint for Damages: 1) Negligence; 2) Negligent Supervision/ Training/ Hiring/ Retention; 3) Sexual Battery; 4) Assault; 5) Violation of Civil Rights [California Civil Code Section 51.9] 6) Violation of Civil Rights [California Civil Code Section 51.7, 51.9, 52, 52.1, 52.3 & 52.4]; Case No. 22STCV39851; Superior Court of the State of California, for the County of Los Angeles; John Doe, Plaintiff v. Los Angeles Unified School District; Saturn Street Elementary School; Jerry Travis; and Roes 1 through 100, Defendants.

3. Aroustamian and Associates
Summons & Complaint for Damages: 1. Negligence (Against LAUSD and Sun Valley Magnet School); 2. Negligence (Against Evan Diamond); 3. Negligent Infliction of Emotional Distress (Against all Defendants) 4. Violation of California Code §44807 (Against all Defendants) 5. Negligent Supervision (Against all Defendants) 6. Premises Liability (Against LAUSD and Sun Valley Magnet School); Case No. 23BBCV02984; Superior Court of the State of California, for the County of Los Angeles – Burbank; J.M., a minor, by and through her Guardian ad Litem Gloria Garcia, Plaintiff v. Sun Valley Magnet School, a business entity of form unknown; Los Angeles Unified School District, a business entity of form unknown; Evan Diamond, an individual; and Does 1-100; Defendants.
4. California Accident Firm
Summons & Complaint: 1. Motor Vehicle; Case No. 24VECV00110; Superior Court of California, County of Los Angeles; Brian Forero; Vanessa Mendez; Katie Gomez, a minor by and through her Guardian ad Litem Angie Gomez, Plaintiffs v. Reginald Ladrue Jr. Calhoun; Los Angeles Unified School District (LAUSD); Does 1 to 10, Defendants.
5. Champion Law Firm
Summons & Complaint for Damages: 1. Negligent Hiring, Supervision, Training, and Retention [Gov. C. § 815.2 & 820]; 2. Negligence [Gov. C. § 815.2, 815.6, & 820]; 3. Negligent Supervision [Gov. C. § 815.2, 815.6, & 820]; 4. Intentional Infliction of Emotional Distress; 5. Battery; Case No. 23CHCV02775; Superior Court of the State of California, County of Los Angeles; Ryder Cobb, a minor, by through his GAL Bertha Norman, Plaintiff v. Los Angeles Unified School District; Chatsworth High School; Edward C. Parker, an individual; and Does 1-50, inclusive, Defendants
6. Downtown LA Law Group
Summons & Complaint for Damages: 1. Negligent Failure to Supervise [Govt Code § 815.2]; Case No. 23SMCV05358; Superior Court of California, County of Los Angeles; Elisavetta Hill, a minor, by and through her Guardian ad Litem Justin Hill, Plaintiffs v. Los Angeles Unified School District, a public entity; Los Angeles County Office of Education, a public entity, City of Los Angeles, a public entity, County of Los Angeles, a public entity; and Does 1 to 50, inclusive, Defendants.
7. Feher Law
Summons & Complaint for Damages: 1) Negligence (Motor Vehicle); 2) Dangerous Condition of Property (Gov. Code Section 835); 3) Negligence (Gov. Code Section 815.2, 815.4, and 820 et seq); Case No. 23CHCV03720; Superior Court of the State of California, for the County of Los Angeles; Paola Boteo Alfaro, a minor by and through her GAL, Paola Alfaro Barahona; Eddie Boteo Perez, Plaintiff

v. Los Angeles Unified School District; and Does 1 through 25, Inclusive, Defendants.

8. Frontier Law Center

Summons & Complaint: 1. Deprivation of Civil Rights – First Amendment Religious Freedom, 42 U.S.C § 1983 2. Deprivation of Civil Rights – Article 1 § 4 California Constitution 3. Harassment Government Code § 12940(j)(1) 4. Religious Discrimination Government Code § 12940 (a) 5. Retaliation in Violation of FEHA (Gov. Code § 12940 (h)); Government Code § 12940(h)); and (1)(4) 6. Failure to Accommodate Government Code § 12940 (l)(1) 7. Employment Discrimination Disability (Gov. Code § 12940(a); 8. Hostile Work Environment (Gov. Code § 12940(a); 9. Violation of FEHA – Failure to Take All Reasonable Steps Necessary to Prevent Discrimination from Occurring; and 8. Intentional Infliction of Emotional Distress; Case No. 2 23-cv-08734-DSF-AJR; United States District Court, for the Central District of California; Esther Tal, an individual, Plaintiff v. Los Angeles Unified School District, a government entity; and Does 1 to 100, inclusive, Defendants.

9. Frontier Law Center

Summons & Complaint: 1. Deprivation of Civil Rights – First Amendment Religious Freedom, 42 U.S.C § 1983 2. Deprivation of Civil Rights – Article 1 § 4 California Constitution 3. Harassment Government Code § 12940(j)(1) 4. Religious Discrimination Government Code § 12940 (a) 5. Retaliation Government Code § 12940 (h) and (1)(4) 6. Failure to Accommodate Government Code § 12940 (l)(1) 7. Violation of FEHA – Failure to Take All Reasonable Steps Necessary to Prevent Discrimination from Occurring; and 8. Intentional Infliction of Emotional Distress; Case No. 2:23-cv-08706-JLS-MARx; United States District Court, for the Central District of California; Marco Caravaggio, an individual, Plaintiff v. Los Angeles Unified School District, a government entity; and Does 1 to 100, inclusive, Defendants.

10. Frontier Law Center

Summons & Complaint: 1) Deprivation of Civil Rights – First Amendment Religious Freedom, 42 U.S.C § 1983; 2) Deprivation of Civil Rights – Article 1 § 4 California Constitution; 3) Harassment Government Code § 12940(j)(1); 4) Religious Discrimination Government Code § 12940 (a); 5) Retaliation Government Code § 12940 (h) and (1)(4); 6) Failure to Accommodate Government Code § 12940 (l)(1); 7) Violation of FEHA – Failure to Take All Reasonable Steps Necessary to Prevent Discrimination from Occurring; and 8) Intentional Infliction of Emotional Distress; Case No. 2:23-cv-08375-JAK-MAA; United States District Court, for the Central District of California; Marilyn

Flowers, an individual, Plaintiff v. Los Angeles Unified School District, a government entity; et al, Defendants.

11. Guerra & Casillas, LLP
Summons & Complaint for Damages: 1. Negligence Per Se; 2. Negligence; Case No. 23STCV31916; Superior Court of the State of California, for the County of Los Angeles; J.S. and S.S., individual minors, by and through Guardian ad Litem, Rolando Zamora-Gonzalez, Plaintiffs v. Los Angeles Unified School District, a public entity; and Does 1 through 20, inclusive, Defendants.
12. Herman Law
Summons and Complaint for Damages; 1) Negligence; 2) Negligent Hiring, Retention, and Supervision; 3) Negligent Failure to Warn, Train, or Education; 4) Negligent Supervision of a Minor; 5) Breach of Mandatory Duty; 6) Negligence; Case No. 24STCV01260; Superior Court of the State of California, County of Los Angeles; A.B., Plaintiff v. Los Angeles Unified School District; and Does 2 through 25, Defendants.
13. Law Offices of Ameer A. Shah
Summons on First Amended Complaint & First Amended Complaint: (1) General Negligence (2) Premises Liability (3) Dangerous Condition of Public Property; Case No. 23BBCV01387; Superior Court of California, County of Los Angeles; Valentin Morales, a minor by and through his Guardian ad Litem, Martha Liliana Magana, Plaintiffs v. Julie Korenstein Elementary School; Los Angeles Unified School District, a public entity; Boy and Girls Club of Hollywood; Boys and Girls Club of Burbank; and Does 1 to 25, inclusive; Defendants.
14. Law Offices of Paul Wong
Summons & Complaint for Damages: (1) Breach of Settlement Agreement; (2) Breach of Fiduciary Duties; (3) Negligence; (4) Sexual Battery; (5) Freedom from Violence or Intimidation (Cal. Civ. Code § 51.7); (6) Violation of Civil Code § 52.4; (7) Vicarious Liability; Case No. 20STCV33156; Superior Court of the State of California, for the County of Los Angeles; SM, as Guardian ad Litem for Jane Doe, a mentally incompetent minor, Plaintiffs v. Los Angeles Unified School District, Sasha Vujic, Adan Martinez, Soojung Kim, and Does 1 to 100, Defendants.
15. Law Offices of Robert F. Schauer
Summons & Complaint for: (1) Breach of Contract (2) Good and Services Rendered (3) Recovery on Contractor's State License Bond (4) Recovery on Stop Payment Notice; Case No. 24STLC00074; Superior Court of the State of California, County of Los Angeles; B&D Construction Co., Inc, a California corporation; Plaintiff v. Los Angeles Unified School District, a California public entity; and Does 1 through 100, inclusive; Defendants.

16. Mann Rogal APC
Summons & Complaint for Damages: 1) Negligence/ Negligent Supervision of Students; 2) Negligent/ Hiring/ Supervision/ Training and Retention; Case No. 24NWCV00164; Superior Court of the State of California, for the County of Los Angeles; Ricardo Lopez, Plaintiff v. Los Angeles Unified School District; and Does 1 through 50, Defendants.
17. Moss Bollinger, LLP
Summons & Complaint for Damages: 1. Failure to Pay Minimum Wages 2. Failure to Pay Overtime 3. Failure to Reimburse for Necessary Expenses 4. Declaratory Judgement; Case No. 24STCV00731; Superior Court of the State of California, County of Los Angeles; Rashell Levy, individually and on behalf of other persons similarly situated, Plaintiff v. Los Angeles Unified School District; and Does 1-50, Defendants.
18. Payton Employment Law PC
Plaintiff's Complaint for: 1. Disability Based Discrimination in Violation of Government Code § 12940(a); 2. Failure to Provide a Reasonable Accommodation in Violation of Government Code § 12940(m); 3. Failure to Engage in the Interactive Process in Violation of Government Code § 12940(n); 4. Wrongful Termination in Violation of Public Policy; Case No. 24STCV01136; Superior Court of the State of California, County of Los Angeles; Keysha Selders, an individual; Plaintiff v. Los Angeles Unified School District, Does 1-10, business entities, forms unknown; Does 11-20, individuals; and Does 21-30, inclusive, Defendants.
19. Rosenberg Law, P.C.
Summons & Complaint for Damages for: 1) Breach of Contract; 2) Gross Negligence in Violation of the Fair Employment and Housing Act; 3) Violation of the California Public Records Act; Case No. 24VECV00017; Superior Court of the State of California, County of Los Angeles – Van Nuys East Courthouse; Angel Barrett, Ed.D., Plaintiff v. Los Angeles Unified School District; Does 1 to 50, Inclusive, Defendants.
20. Seber Bulger LLP
Summons & Complaint for Damages: 1) Negligence Based on Gov. Section 815.2, 815.6 and 820; 2) Negligent Hiring, Supervision, Training, and Retention Based on Gov. Code Section 815.2, 815.6, and 820; Case No. 23STCV11174; Superior Court of the State of California, for the County of Los Angeles; A.M., a minor, by and through her GAL, W.R., Plaintiff v. Los Angeles Unified School District; and Does 1 through 100, Inclusive, Defendants.
21. Seber Bulger LLP
Summons & Complaint for Damages: 1) Negligence Based on Gov. Section 815.2, 815.6 and 820; 2) Negligent Hiring, Supervision, Training, and Retention Based on Gov. Code

Section 815.2, 815.6, and 820; Case No. 23STCV28151; Superior Court of the State of California, for the County of Los Angeles; F.J., a minor, by and through her GAL, T.M., Plaintiff v. Los Angeles Unified School District; and Does 1 through 100, Inclusive, Defendants.

22. The Mason Law Firm

Summons & Complaint for Damages: 1) Premises Liability; 2) Negligence; 3) Negligent Hiring, Training and Supervision; 4) Assault; 5) Battery; 6) Negligence – The Rescue Doctrine; Case No. 23SMCV05552; Superior Court of the State of California, for the County of Los Angeles; Pedro Alves, by and through his Guardian Ad Litem, Cameron O’Reilly, Plaintiff v. Los Angeles Unified School District; and Does 1 to 100, Inclusive, Defendants.

23. The Westmoreland Law Firm, P.C.

Summons & Complaint for: (1) Negligence (2) Negligent Supervision & Retention (3) False Imprisonment (4) Intentional Infliction of Emotional Distress (5) Sexual Battery (6) Sexual Harassment; Case No. 23STCV24747; Superior Court of the State of California, County of Los Angeles; Daphoine Smith, as parent and guardian ad litem for T.T., a minor; Daphoine Smith, as an individual; Plaintiffs v. Los Angeles Unified School District, a public entity; and Does 1 through 50, inclusive; Defendants.

24. Young, Minney & Corr, LLP

Verified Petition for Writ of Mandate (CCP §1085); Case No. 24STCP00143; Superior Court of the State of California, County of Los Angeles; Global Education Collaborative, Petitioner, v. Los Angeles Unified School District, Respondents.

The recommended disposition of the following item is “Refer to Superintendent for referral to the Office of the Risk Management and Insurance Services”:

<u>No.</u>	<u>Received From</u>	<u>Type of Damage</u>	<u>Claimant</u>	<u>Date of Damage</u>
25.	Alan Carrillo Espinoza	Damages	Alan V Carrillo Espinoza	12-14-23
26.	Jesus Eduardo Arias, Law Office of Jesus Eduardo Arias	Damages	Ana Jimenez Martinez (Mother of decedent Zenon Jimenez Martinez)	07-19-23
27.	Parvz Khatibi	Damages	Ariana Khatibi	07-12-23
28.	Dawn Rosenthal	Damages	Brenden Rosenthal	Various dates
29.	Dawn Rosenthal	Damages	Brenden Rosenthal	“Continuing violation” (3 received)
30.	Jazmine Gomez OBO Clayton Liang Downtown LA Law Group	Damages	Clayton Liang	07-05-23
31.	Edith Chavelas	Damages	Edith Chavelas	N/A
32.	Jon Sargsyan The Injury Law Firm	Damages	Isis Chambers	10-26-23
33.	Schyler S. Katz ACTS Law	Damages	Jaylene Marie Benitez	“Beginning in August 2023”
34.	Jelani Jones	Damages	Jelani Jones/ Steven Young	01-10-24

35.	Kelle Husk	Damages	Kelle Husk	08-21-23
36.	Martin Rodriguez	Damages	Martin Rodriguez	11-24-23 – 11-27-23
37.	Shawn Azizzadeh Bedford Law Group	Damages	Naphtalie Smith	10-13-23
38.	Paul Wilkens	Damages	Paul Wilkens	Not provided
39.	Small Claims Court	Damages	Roberto Segura	04-10-23
40.	Small Claims Court	Damages	Warren L Jelinek	07-1-20 through 6-30-21
41.	Bridget D. Medina	Vehicle Damages	Bridget D. Medina	08-28-23
42.	Eugenio Morales Barrera	Vehicle Damages	Eugenio Morales Barrera	01-08-24
43.	Jessica Amber Pineda	Vehicle Damages	Jessica Amber Pineda	01-03-24
44.	Maria Munguia Mercury Insurance Company	Vehicle Damages	Kim Rosario c/o Mercury Insurance Company	10-04-23
45.	Kriscia Tomasino Sanchez	Vehicle Damages	Kriscia Tomasino Sanchez	10-26-23
46.	Manuela Silveyra-Villegas	Vehicle Damages	Manuela Silveyra-Villegas	12-01-23

47.	Martina Cordova	Vehicle Damages	Martina Cordova	01-09-24
48.	Suzanne P. Miller	Vehicle Damages	Suzanne P. Miller	01-12-24
49.	Tracy Killings	Vehicle Damages	Tracy Killings	10-16-23
50.	Emmanuelle Enos	Vehicle Damages	Emmanuelle Enos	11-16-23
51.	Lisa Marin	Vehicle Damages	Lisa Marin	12-11-23
52.	Lori Pogarian	Vehicle Damages	Lori Pogarian	12-12-23
53.	Maria Teresa Frias	Vehicle Damages	Maria Teresa Frias	12-04-23
54.	Rafael Ortiz	Vehicle Damages	Rafael Ortiz	01-08-24
55.	Sarine Jabarion	Vehicle Damages	Sarine Jabarion	10-28-23
56.	Oz Tannenbaum Cohn & Swartzon, P.C.	Vehicle Damages	Sergio Cruz	07-11-23
57.	Sharon Hillel	Vehicle Damages	Sharon Hillel	12-21-23
58.	Sulman Hernandez	Vehicle Damages	Sulman Hernandez	01-08-24